

2. **Legal estates enlarged.**—In *other* cases the Court has *extended the estate*, as where, before the late Wills Act, the devise was to three trustees, and the survivor of them, and the executors and administrators of such survivor, upon trust to pay certain annuities for lives, and it was ruled that the trustees took an estate for the *several lives of the annuitants* (c).

3. **Trust to sell confers a fee.**—If land, said Lord Hardwicke, be devised to a man without the word *heirs*, and a trust be declared which can be satisfied in no other way but by the trustees taking an inheritance, it has been construed that a fee passes (d). Thus a trust to sell (e), even on a contingency (f), confers a fee simple as indispensable to the execution of the trust; and the construction is the same in a sale implied, as where the devise is upon trust out of the rents and profits of an estate to discharge certain legacies, made payable at a day inconsistent with the application of the annual profits only (g).

4. **Charges not implying a power of sale.**—But a power of selling will not be implied by a limitation to a trustee, or to a trustee his *executors and administrators* for and **until payment* of debts and legacies gener- [*214] ally (a), or for raising a sum of money out of the *rents and profits* (b); and therefore, in such cases, before the

(c) *Doe v. Simpson*, 5 East, 162; and see *Atcherley v. Vernon*, 10 Mod. 523; *Oates v. Cooke*, 3 Burr. 1684; *Shaw v. Weigh*, 2 Str. 798; *Jenkins v. Jenkins*, Willes, 656. In *Doe v. Simpson*, a life estate only was implied, as the trustee was merely such; but in *Jenkins v. Jenkins*, the trustee being also interested beneficially, the construction was more liberal, and it was thought the fee simple passed.

(d) *Villiers v. Villiers*, 2 Atk. 72.

(e) *Shaw v. Weigh*, 2 Str. 798; *Bagshaw v. Spencer*, 1 Ves. 144, per Lord Hardwicke; and see *Glover v. Monckton*, 3 Bing. 113; 10 Moore, 453. As to *Hawker v. Hawker*, 3 B. & Ald. 537, and *Warter v. Hutchinson*, 5 Moore, 143, S. C. 1 B. & C. 721,

see remarks, pp. 217, 218, note (j) *infra*.

(f) *Gibson v. Lord Montfort*, 1 Ves. 485, see p. 491.

(g) *Gibson v. Lord Montfort*, *ubi supra*.

(a) Co. Lit. 42, a; *Cordal's case*, Cr. Eliz. 315; *Carter v. Barnardiston*, 1 P. W. 505; *Hitchens v. Hitchens*, 2 Vern. 403; *Doe v. Simpson*, 5 East, 171, per Lord Ellenborough, C. J.; *Roberts v. Dixwell*, 1 Atk. 609, per Lord Hardwicke.

(b) *Doe v. Simpson*, 5 East, 162; and see *Bosworth v. Forard*, O. Bridg. Rep. 167; *Thomason v. Mackworth*, id. 507; Co. Lit. 42, a, note (7), Butler's ed.; *Collier v. Walters*, 17 L. R. Eq. 252.